



Income Tax Department

Ministry of Finance, Government of India

⁶⁰[Provision for cases where assessment is in pursuance of an order on appeal, etc.]

283. (1) Irrespective of anything contained in section 282, the notice under section 280 may be issued at any time for the purpose of making an assessment or reassessment or recomputation in consequence of, or to give effect to,—

- (a) any finding or direction contained in an order passed by any authority, Tribunal or Court in any proceeding under this Act or any other law; or
- (b) the directions issued by the Approving Panel under section 274(6).

(2) The provisions of sub-section (1) shall not apply in any case, where the assessment or reassessment or recomputation as is referred to in that sub-section relates to a tax year in respect of which an assessment or reassessment or recomputation could not have been made under this Act due to it being time-barred, at the time when,—

- (a) the order, which was the subject-matter before any authority, Tribunal or Court, was made; or
- (b) the proceedings relating to assessment or reassessment or recomputation under this Act (other than those proceedings which have culminated in an order), which was the subject-matter before the Court, was initiated; or
- (c) the reference from the jurisdictional Principal Commissioner or Commissioner is made to the Approving Panel under section 274(4).

(3) For the purposes of sub-section (1), notice under section 280 shall be issued within three months from the end of the quarter in which the certified copy of the order of the authority or the Court, as the case may be, is received by the jurisdictional Principal Commissioner or Commissioner.]

60. Sub. by Act No. 4 of 2026, w.e.f. 1-4-2026. Prior to its substitution, section 283 read as under :

"283. Provision for cases where assessment is in pursuance of an order on appeal, etc.—(1) Irrespective of anything contained in section 282, the notice under section 280 may be issued at any time for the purpose of making an assessment or reassessment or recomputation in consequence of or to give effect to—

- (a) any finding or direction contained in an order passed by any authority, Tribunal or court in any proceeding under this Act by way of appeal, reference or revision or by a Court in any proceeding under any other law; or
- (b) the directions issued by the Approving Panel under section 274(6).

(2) The provisions of sub-section (1) shall not apply in any case where any such assessment, reassessment or recomputation as is referred to in that sub-section relates to a tax year in respect of which an assessment, reassessment or recomputation could not have been made, by reason of any other provisions limiting the time within which any action for assessment, reassessment or recomputation may be taken, at the time when,—

- (a) the order which was the subject-matter of the appeal, reference or revision, as the case may be, was made; or
- (b) the reference from the jurisdictional Principal Commissioner or Commissioner is made to the Approving Panel under section 274(4)."

